

THE EXCISE DUTY ACT,

NO.8 OF 2017

(PRINCIPAL LEGISLATION)

(THE REVISED EDITION OF 2025)

(This Compilation of the Excise Duty Act No. 8 of 2017, incorporates and consolidates all amendments made to the Act since its commencement up to June, 2025 for easy reference of the Act.

ACT NO. 8 OF 2017.

I ASSENT

(DR. ALI MOHAMED SHEIN)

PRESIDENT OF ZANZIBAR AND CHAIRMAN OF

THE REVOLUTIONARY COUNCIL

4th July, 2017

**AN ACT TO MAKE PROVISIONS FOR THE IMPOSITION OF TAX
TO BE KNOWN AS EXCISE DUTY ON IMPORTED GOODS AND
SERVICES AND OTHER MATTERS RELATION THERETO**

ENACTED by the House of the Representatives of Zanzibar

**PART ONE
PRELIMINARY PROVISIONS**

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| Short title and Commencement. | 1. This Act may be cited as the Excise Duty Act, 2017 and shall come into operation immediately upon being assented to by the President. |
| Application. | 2. This Act shall apply in Zanzibar for excisable goods and services as specified under this Act. |
| Interpretation. | 3. In this Act, unless the context otherwise requires: |

“aircraft” includes every description of craft used in aerial navigation;

“arm length principle” means an internationally accepted and preferred basis for determining the transfer price of a transaction between association persons;

“authorized officer” means the officer the officer appointed by the Commissioner to perform any duties under this Act.

“beer” includes ale, porter, and any other description of beer and any liquor which is made and sold as a description of, or substitute for, beer and which contains more than two per centum of proof spirit but does not include local

liquor as defined in the law relating to Intoxicating and Liquors;

“cigar” means a cigar, cheroot or cigarillo, prepared from tobacco;

“cigarette” means a cigarette prepared from tobacco and includes any form of tip, and the paper of the cigarette;

“Commissioner” means a person appointed under section 14 of Zanzibar Revenue Board Act No. 7 of 1996.

“days” does not include Saturdays, Sundays or public holidays;

Dutiable value” means in relation to:

- (a) the use of mobile phone, is amount payable for any electronic communication service supplied in relation to the use of mobile phone, fixed or wireless phone.
- (b) Prepared electronic communication services, is the face value of the voucher at a sale;
- (c) Pay to view television service, is the amount payable for any services supplied in relation to pay- to view television;
- (d) Financial services, is the number of charges and fees payable for the services; and
- (e) Imported non-utility vehicle chargeable by the custom value;
- (f) Other imported services except financial services, amount, charges or total value of services acquired from foreign providers.

Inserted by Act No
5 of 2025 section
11

“electronic communication service” means a service of any description provided by a person or a company by means of any transmission, emission or reception of signs, signals, writing, images and sounds or intelligible information of any nature, by wire, optical, visual or other electromagnetic means or systems, including:

- (a) voice, voice mail, data services, audio text services, video text services, radio paging and other emerging electronic communication services;
- (b) fixed telephone services including provision of access to and use of the public switched or non-switched telephone network for the transmission and switching of voice, data and video, inbound and out bound telephone service to and from national and international

destinations;

- (c) cellular mobile telephone services including provision of access to and use of switched or non-switched networks for the transmission of voice, data, video and value added services inbound and outbound roaming service to and from national and international destinations;
- (d) carrier services including provision of wired, optical fiber or wireless facilities and any other technology to originate, terminate or transit calls, charging for inter connection, settlement or termination of domestic or international calls, charging for jointly used facilities including pole attachments, charging for the exclusive use of circuits, a leased circuit or a dedicated link including a speech circuit, data circuit or a telegraph circuit;
- (e) provision of call management services for a fee including call waiting, call forwarding, caller identification, multcalling; call display, call return, calls screen, call blocking, automatic callback, call answer, voice mail, voice menus and video conferencing;
- (f) private network services including provision of wired, optical fiber, wireless or any other technologies of electronic communication link between specified points for the exclusive use of the client;
- (g) data transmission services including provision of access to wired or wireless facilities and services specifically designed for efficient transmission of data;
- (h) communication through facsimile, pager, telegraph, telex and other electronic communication services; and
- (i) any services which will be added from time to time by financial institutions or telecommunication service providers,

“duty” includes any imposition, tax or surtax, imposed by any excise law;

“excisable goods” means excisable goods imported in Zanzibar which are specified in the First Schedule of this Act;

“excisable services” means any local and imported excisable service which are specified under Second Schedule of this Act;

“excise duty” means any duty of excise imposed on goods and services under section 4 of this Act;

“export” means in relation to the:

- (a) goods, is to take or cause to be taken out of partner state;
- (b) services, is to supply service or cause to be supplied out of Zanzibar.

“financial services” include bankers, insurance service, money transfer, and other financial services issued by any person as provided under this Act;

“head of customs” means a person who is in charge of the Custom in Zanzibar;

“import” means, to bring or cause to be brought goods or services into Zanzibar;

“importer” means, a person who brings or causes to be brought, receives, serves or clear the goods or services into Zanzibar;

“master” includes any person for the time being having or taking charge or command of any aircraft or vessel;

”Minister” means the Minister responsible for Finance;

“night” means the period between six o’clock in the evening of anyday and six o’clock in the forenoon of the following day;

“non-utility vehicles” means all types of vehicles referred to under tariff codes and tariff heading used by custom Department;

“owner” in respect of any excisable goods, aircraft, vessel, vehicle, or other thing, includes any person, other than an officer acting in his official capacity being or holding himself out to be the owner, agent, or the person in possession of or beneficially interested in or having control of or having power of disposition over, such goods, aircraft, vessel, vehicle, or other thing;

“Partner states” means any country granted membership under Article 3 of the Treaty for the Establishment of The East African Community;

“proper officer” means any officer authorized by the head of Custom whose right or duty is required to be performed in accordance with the provisions of

this Act;

“spirits” means spirits of any description and includes all liquor mixed with spirits and all mixtures and compounds or preparations made with spirits, but does not include denatured spirits in the law relating to Intoxicating or Liquor;

“register tonnage” means the tons of a ship’s net tonnage as ascertained and registered according to the tonnage Regulations of the Merchant Shipping laws or in the case of a ship which is not registered under that Act, ascertained in like manner as if it were to be so registered;

“vehicle” includes every description of conveyance for the transport by any person.

“wine” means liquor of a strength not exceeding 50 degrees of proof which is made from fruit and sugar or mixed with any other material and which has undergone a process of fermentation in the manufacture thereof and includes mead;

PART TWO

IMPOSITION OF THE EXCISE DUTY

Imposition of excise duty. 4. (1) Subject to the provisions of this Act, the imported excisable goods specified in the First Schedule and excisable services specified in the Second Schedule of this Act, shall be chargeable with excise duty at the rate specified in the First and Second Schedule of this Act.

(2) The Minister shall by order published in the Government Gazette amend the First and Second Schedules of this Act when he deems necessary.

Determination of excisable value for imported goods. 5. (1) The excisable value in respect of imported excisable goods, shall be the value declared and determined in accordance with the provisions of the East African Community Customs Management Act taking into account the import duty payable for such goods.

(2) Where in the opinion of the Commissioner, by reason of any fraudulent act or omission on the excisable value of any imported goods is not the same as the excisable value of similar goods imported, may assess the excisable value in accordance with East African Community Customs Management Act.

Value of excisable services. 6. –(1) The excise value of excisable services shall be the:
(a) fee, commission or charge payable for the service, if the excisable services are supplied by a registered person at arm length; or
(b) open market value of the services, in any other case.

(2) When excisable value shall not include Value Added Tax and for fees charged by financial institutions it shall not include interest on loan or return on loan or insurance premium.

(3) Where in the opinion of the Commissioner, by reason of any fraudulent act or omission on the excisable value of any excisable service is not the same as the excisable value of a similar excisable service, may assess the excisable value in accordance with Tax Administration and Procedure Act or arm's length Principle.

Inspection of record. 7. – (1) Proper officer may require any person concerned in the importation or exportation of goods, or in the carriage, unloading, landing, loading of goods which are being or have been imported or exported, at any time within three years of the date of delivery to produce any information relating to the goods and allow the proper officer to inspect and take extracts from or make copies of any invoice, bill of lading, other book or document relating to the goods of the entry thereof.

(2) Subject to the provisions of the sub section (1) of this section, where the entry was not delivered on the date of importation or exportation thereof, the proper officer shall require the person to produce any information relating to the goods as prescribed in the Tax Administration and Procedures Act or East African Community Customs Management Act.

Time of supply of excisable services. 8. –(1) Time of supply of excisable services shall be earlier of the time on which:

- (a) services are rendered;
- (b) the tax invoice is issued; or
- (c) payment is received.

(2) For imported goods, duty shall be due when the goods are entered for home consumption, if the goods are:

- (a) at the port;
- (b) from a warehouse;
- (c) removed from an export processing zone; or
- (d) in any other case at the time the goods are brought in

Zanzibar.

Control excisable goods. 9. (1) Subject to the provisions of section 11 of this Act, the imported excisable goods shall be subject to excise control by the Head of Customs in Zanzibar until the excise duty is paid or the goods are taken out of Zanzibar, re-exported or destroyed.

Amended by Act No 4 of 2024.

(2) The Head of Customs shall, for the purpose of controlling imported excisable goods, stamp all imported excisable goods at the time of importation in accordance with the laws governing stamping of imported excisable goods.

(3) For the purpose of this section, "stamp" means electronic tax stamp.

(4) A person who removes or attempt remove any excisable goods while under the excise Custom control shall be liable to a penalty equal to double the excise duty payable on those goods.

Place of supply of excisable services.

10. Services shall be regarded as supplied in Zanzibar if the:

(a) supplier of the services has a place of business in Zanzibar;

(b) consumption, effective use and enjoyment of that service take place in Zanzibar, irrespective of contract, payment or beneficial interest;

(c) supply occurs in Zanzibar, temporary or permanently, regardless where the license, permit, certificate, concession, authorization or other document is issued; or

(d) services are rendered in Zanzibar, by any person who is in Zanzibar or outside of Zanzibar at the time the services are rendered.

Delegation of duties and powers.

11. (1) The Commissioner may delegate the powers or the performance of any duty imposed to him by this Act in respect of the administration and collection of excise duty on imported excisable goods to the Head of Customs in Zanzibar.

(2) Any duty imposed or power conferred on the Commissioner under this Act other than duties and powers in respect of the administration and collection of excise duty on imported excisable goods, may be performed or exercised by the Commissioner personally or by any officer authorized by the Commissioner.

(3) Any decision made or any notice or communication signed or issued by any officer authorized under subsection (2) of this section, may be withdrawn or amended by the Commissioner or by that officer authorized and shall be deemed to have been made, signed or issued by the Commissioner.

(4) The Commissioner may, for the purposes of the administration of this Act, commission or make such arrangements or enter into such agreements with any institution or authority in collection of excise duty under this Act.

(5) The person who is a party to agreement or commissioned in collection of excise duty shall perform his duties and exercise his powers conferred under this Act.

(6) The Commissioner may cancel the delegation of powers or duties under sub section (1) or arrangement or agreement made under sub section (4) of this section, if he considers reasonable to do so.

PART THREE
PAYMENT OF DUTY

Payment of duty.

12. –(1) The duty payable under this Act shall be paid to the Commissioner.

(2) Notwithstanding the provisions of sub section (1) of this section, the provisions of Customs Laws on assessment, payment and collection of taxes on imports shall apply to assessment, payment and collection of the Excise Duty on imported excisable goods.

(3) The due date for payment of excise duty in respect of:

- (a) local excisable services shall be as prescribed under provisions relating to payment of taxes under the Tax Administration and Procedures Act;
- (b) imported excisable services shall be at the time of importation;
- (c) imported excisable goods shall be as provided under sub section (2) of this section.

(4) The rates of collection of Excise Duty in respect of imported excisable goods shall be the rate in force at the time the goods liable to such duty are entered for home consumption.

(5) In any case where the time when the duty becomes due and payable in respect of any imported excisable goods cannot for any reason be ascertained, the duty shall be payable in respect of any goods at the rate in force at the time of the payment of the duty.

(6) Without prejudice the provisions of subsections (2) and (3) of this Act, the Minister may, by Regulations made under this Act or by order published in the Government Gazette provide for payment of duty by any person or category of persons liable to pay duty on any day other than the day on which such person or category of persons would be liable to pay the duty.

(7) The Commissioner may, where he is satisfied that it is reasonable to do so, permit payment of duty in any case to be deferred with the prescribed accounting period provided under Tax Administration and Procedures Act.

Persons liable to pay duty.

13. –(1) The excise duty imposed by this Act shall become due and payable in respect of:

- (a) imported goods by the importer or owner thereof at the time immediately before the goods ceases to be subject to customs control or at such other time as the Minister may, by notice in the Government Gazette, direct;
- (b) any goods imported by any person exempted from duty and which is subsequently sold to any other person by the purchaser at the time of the sale of the goods by him;
- (c) any electronic communication supplied by the electronic communication service provider, at the time when such mobile, fixed or wireless phone or any device used to facilitate electronic communication is in use or when the payment is made for the service whichever time shall be the earliest;
- (d) charges or fees collected by financial institutions or telecommunication service provider on money transfer and transfer service; by service provider;
- (e) any payment for viewing satellite television by the service provider when the service is supplied;
- (f) imported service by the importer or the recipient of the service.

(2) The Minister may, by order published in the Gazette, provided that in respect of:

- (a) any goods or class of goods or services specified in that order; or
- (b) a person other than a person liable under sub section (1) of this section,

shall be liable to pay the duty, and the person so specified in the order shall be liable to pay the duty in lieu of the person who would otherwise have been liable to pay the duty under the provisions of this Act or Regulations shall apply.

Recovery of duty.

14. –(1) Where any excise duty payable under this Act is not paid, the Commissioner may recover such duty in case the duty is in respect of:

(a) the imported excisable goods, in accordance with the provisions of the East Africa Community Customs Management Act; and

(b) excisable services, in accordance with the provisions of Part VII of the Tax Administration and Procedures Act.

(2) Without prejudice the provisions of sub section (1) of this section, the Commissioner may use any other methods specified under the Regulations of this Act for imported goods or excisable services if satisfied that it shall assist in recovery of duty.

Persons and institution exempted from payment of duty.

15. –(1) Without prejudice the provisions of this Act, persons and organizations listed in the Third Schedule of this Act, shall be exempted from payment of duty subject to the procedures which may be specified under Regulations made of this Act.

(2) For the purpose of this section, the Minister may, after consultation with the Commissioner, prescribe the persons and organizations entitled to be exempted from payment of duty as specified under the Third Schedule of this Act, by order published in the Government Gazette.

Exemptions from duty on goods entered for exportation.

Amended by Act No. 5 of 2025 section 12

(3) The exemptions from payment of duty under this section shall not apply to vehicles aged five years.

16. Where any excisable good is entered under bond for:

- (a) export, transshipment or in transit; or
- (b) use as stores for aircraft or vessels,

and is proved to the satisfaction of the Commissioner to have been duly exported or used as such stores, as the case may be, it shall be exempted from liability to the duty.

Exemption on goods remaining on board.

17. Excisable goods remaining on board and exported in the aircraft or vessels in which they are imported, whether as stores or otherwise, shall be exempted from liability to the duty.

Exemption on goods cleared in Mainland Tanzania.

18. Goods imported and cleared under the custom procedures in Mainland Tanzania shall not be chargeable with duty when transferred for home consumption in Zanzibar.

Remission of the duty.

19. –(1) Where any imported excisable goods are lost or destroyed by accident either:

- (a) on board in any aircraft or vessel;

(b) in removing, loading, unloading, or receiving them into or delivering them from any custom area or warehouse; or

(c) in any custom area or warehouse,

before the goods are delivered out of Custom's control to owner, if the Commissioner is satisfied that such goods have not been and will not be consumed in Zanzibar, the Commissioner may remit the duty payable in respect of goods.

(2) Remission of any duty shall not be granted unless the person claiming such remission presents such claim in the manner prescribed under Regulations of this Act.

(3) Without prejudice to the provisions of subsections (1) of this section, the Minister may, by Order published in the Government Gazette, remit in whole or in part of any excise duty payable by any person on any imported excisable goods or any service by specifying the time limit, goods, service or any other conditions if he is satisfied that it is in the public interest so to do.

Rebate of the duty.

20. —(1) Where any goods imported into Zanzibar are damaged before such goods are delivered out of Customs control, a rebate of the duty payable in respect of such goods may be allowed in such amount as in the opinion of the proper office after consultation with the Head of Custom.

(2) Rebate of duty shall be allowed under this section in respect of any goods except where the proper officer is satisfied that the carrier or insurer of the goods has made an allowance to the owner in respect of damage; and the rebate shall not exceed, in any case, the proportion of the duty at the amount of the allowance so made bears to the value of goods.

Refund of the duty.

21. —(1) A person liable to pay excise duty may apply to the Commissioner for a refund of any excise duty paid in error or in excess of the excise duty assessed or due.

(2) The application for a refund shall be made to the Commissioner in the form and manner prescribed under Regulations of this Act.

(3) Where the Commissioner is satisfied that excise duty has been paid in error or in excess, shall allow the refund or reduction of any other tax due from the person liable to pay tax.

(4) The Commissioner shall, within thirty (30) days, serve a notice of decision in writing to the person applying the refund.

PART FOUR

ACCOUNTING AND RECORDS

Accounting and

22. —(1) A person liable to pay excise duty shall keep the records as

Records.

required under the Tax Administration and Procedure Act or East African Community Customs Management Act for the imported excisable goods.

(2) The Proper officer or authorized officer may, for the purposes of this Act:

- (a) without prior a written notice, at any time, enter in any premises and make such examination and enquiry as he deems necessary;
- (b) while he is on the premises or at any time, require from any person the production of any book, document or electronic device which by this Act is required to be kept or exhibited or which relates to or which he has reasonable cause to suspect it relating to matters dealt with in this Act and which is or has been on the premises or in the possession or custody or under the control of any such person or his employee;
- (c) at any time and at any place, require from any person who has or is believed to have the possession or custody or control of any book, document or electronic device relating to any matter dealt with in this Act; and
- (d) examine and make extracts from and copies of any such book or document or electronic device and shall require from any person an explanation of any entry therein and may attach any such book, document or electronic device as in his opinion may afford evidence of any matter dealt with in this Act.

(3) A person who is:

- (a) connected with business;
- (b) occupied or used in any premises; or
- (c) employed by the taxable person,

shall, at any time, allow the authorized officer to enter the premises for exercise of his powers and duties under this Act.

(4) Where a proper officer or an authorized officer, after having declared his official capacity and his purpose and having demanded admission into any

premises, is not immediately admitted, he and any person assisting him may, at any time, except during night only in the presence of a police officer:

- (a) break or open any door or window or break through any wall on the premises for the purpose of entry and search;
- (b) break up any ground or flooring on any premises for the purpose of search and if any room, place, safe, chest, box or package is locked and the keys thereof are not produced on demand, may open such room, place, safe, chest, box or package in any manner.

(5) The Commissioner or the Head of Custom may require any person to appear before him at any time and place fixed by the Commissioner or Head of Custom and may question that person, either alone or in the presence of any other person, as he thinks fit, with respect to any matter dealt with in this Act.

(6) A proper officer may:

- (a) board any ship within the territorial waters or fishing zone of Zanzibar or may stop and board any vehicle in Zanzibar and may search any such ship or vehicle or any person found therein or thereon for goods upon which duty has not been paid, or in respect of which he has reasonable cause to believe that there has been a contravention of any provision of this Act or Regulations made under this Act, and may freely remain on such ship or vehicle in pursuance of his duties.
- (b) if any vehicle, room, cabin, place, safe, chest, box, package or container is locked and the keys thereof are not produced on demand, shall open such vehicle, room, cabin, place, safe, chest, box, package or container in any manner.
- (c) have free access to and the right to rummage every part of any ship, aircraft or vehicle and to examine all goods on board, with power to fasten down hatchways and to mark any goods before landing and to lock up, seal, mark or otherwise secure any goods on board of that ship or vehicle, including any apparatus thereof, and he may also demand from the master of such ship or the pilot of any aircraft concerned or the person in charge of any other vehicle the production of any document to which any provision of this Act relates.

(7) Proper officer or an authorized officer may lock up, seal, mark, fasten or otherwise secure in any warehouse, store, room, cabin, place, vessel,

appliance, utensil, fitting, vehicle or goods if he has reason to believe that any contravention under this Act or Regulations has been or is likely to be committed in respect thereof or in connection therewith.

PART FIVE

MISCELLANEOUS PROVISIONS

Re-importation.

23. –(1) Where any excisable goods are re-imported after being exported, and in respect of which no drawback or refund of duty has been paid, or if paid, has been returned to the Commissioner, such goods shall not be liable to duty; but if the goods has been processed abroad and its excisable value has, in consequence of being so processed, increased, the amount of the increased excisable value shall be liable to duty at the rate applicable to the excisable goods so re-imported.

(2) This section shall not apply to any case where the excisable goods re-imported is a composite goods which is composed in part only of the excisable goods exported unless the whole of the excisable goods re-imported is composed of two or more excisable goods that has been exported.

(3) Subject to the provisions of this Act, the excise duty shall not be levied, more than once in respect of any excisable goods.

Customs control on excisable goods.

24. –(1) The following excisable goods shall be subject to Customs control in all imported goods which are:

84. imported through Post Office, from the time of importation until delivery for home consumption or until exportation;

(c) under draw-back from the time of the claim for draw-back until exportation of such goods;

(d) under the control of the proper officer stored in a customs area pending exportation;

(e) on board in any aircraft or vessel whilst within any port or any place in Zanzibar.

(2) Where any excisable goods are under Customs control the proper officer may, at any time, examine the goods and a person shall not interfere with the goods except with the consent of a proper officer in accordance with the provisions of this Act.

(3) Where any excisable goods are subject to customs control, and are ascertained to be not fit for domestic consumption the Commissioner may permit the owner of that goods to abandon the same to the customs; and on

that abandonment that goods may, at the expense of the owner thereof, be destroyed or otherwise disposed off in the manner prescribed under the Regulations made to this Act.

(4) The Commissioner may direct the duty mode to which the duty thereon shall be remitted or refunded, as the case may be.

Entry of scheduled goods and warehousing.

25. The provisions of the East African Community Customs Management Act relating to the entry and warehousing of goods liable to import duty and the mode of importing goods in Zanzibar shall apply to importation the entry and warehousing of Excisable goods under this Act.

Where person liable to pay excise duty is absent from Zanzibar.

26. Where a person who is liable to pay excise duty this Act is absent from Zanzibar, the Commissioner may, by notice in writing require the:
Agent of such person;

(a) Person managing the business of that person who is in Zanzibar and who has acted on behalf of that person in any matter resulting in liability;

(b) Recipient of the good or services;

(c) Manager of the business of the person in respect of settling excise duty on services;

to pay the duty in place of that person as if he is a person liable under the provisions of this Act.

Tax avoidance scheme.

27. A person who enters into a scheme with the sole purpose of avoiding tax so that enabling the person obtain a tax benefit is obtained, the Commissioner may within five years from the last day of the month when the liability arose, assess the tax liability as if the scheme had not been entered into.

Liability to pay excise duty.

28. –(1) A person who collects excise duty due in Zanzibar in respect of a transaction that took place before the commencement of this Act, shall be due and liable under this Act; unless the duty remitted to the Commissioner or refunded to the payer of such duty.

(2) A person who fails to comply with the provisions of the subsection (1) of this section, shall be liable to pay the duty due together with penalty of not less than Three Million Shillings and not exceeding Ten Million Shillings.

Impersonation.

29. A person who impersonates with the authorized officer or proper officer and exercising of their duties or powers conferred under this Act, commits an offence and upon conviction is liable to a fine of not less than Two Million Shillings but not exceeding Ten Million Shillings or to

Offences and penalties.	and	imprisonment for a term of not less than one year and not exceeding five years, or to both the fine and imprisonment. 30. –(1) A person who: (a) remove or attempt to remove goods while under custom control; (b) fails to pay excise duty when it is due; (c) fails to keep proper records as he required under this Act; (d) hinders or obstruct attempt to obstruct the proper officer or authorized officer in exercising of his duties or powers conferred under this Act; (e) fails or refuses to produce document or information required relating with the goods, services or business; (f) refuses to answer the questions asked by the proper officer or authorized office relating with the excisable goods, services or business; or (g) knowingly misrepresents or produces false documents or information to the proper officer or authorized officer,
Other offences.		Commits an offence and up on conviction is liable to a penalty of double of the excise duty payable or imprisonment for the term of not less than three months and not exceeding six months or both such fine and imprisonment. (2) Any person who fails to notify the Commissioner of discrepancies between actual recorded inventory of goods under excise control; or changes in business particulars, commits an offence and upon conviction is liable to a fine of Two Million Shillings or imprisonment for the term of not less than three months and not exceeding six months or both fine and imprisonment. 31. The provisions of East African Community Customs Management Act relating to offences and penalties on importation shall apply on importation of excisable goods.
General penalty.		32. A person, who contravenes any provision of this Act or its Regulations where the punishment is not specifically provided, commits an offence and upon conviction shall be liable to a fine of Two Million Shillings or imprisonment for the term of not less than three months and not exceeding six months both fine and imprisonment.
Regulations.		33. –(1) The Minister may, by published in the Government Gazette,

make Regulations for better implementation of the provisions of this Act.

(2) Without prejudice to the generality of the provisions of the subsection (1) of this section, the Minister may:

(a) prescribe any fee or charge to be levied on excisable goods imported into Zanzibar; or excisable services;

(b) provide for the form of the returns which is required to be specified under this Act;

(c) regulate the remission, rebate and refund of excise duty; or

(d) provide the manner for securing and collection of excise duty; or

(e) prescribe or regulate any other matter require prescribed for the purposes and implementation of the provisions of this Act.

Savings.

34. Any act done on charging Excise Duty in Zanzibar for any goods or any services before the coming into force of this Act shall be deemed to have been done under the provisions of this Act.

PART SIX

CONSEQUENTIAL AMENDMENTS

Amendment of the Tax Administration and Procedures Act.

35. The Schedule to the Tax Administration and Procedures Act, No. 7 of 2009 is hereby amended by inserting item No. 6 after item No. 5 as follow:

“Excise Duty Act, No. 8, 2017”.

Amendments of the Zanzibar Revenue Board Act No. 7 of 1996.

36. Amendments of the Zanzibar Revenue Board Act No. 7 of 1996.

FIRST SCHEDULE

EXCISABLE GOODS

(Made under section 4(1))

HEADING	HS CODE	DESCRIPTION	UNIT	RATE
02.07		Meat and edible offal, of the poultry of heading 01.05, fresh, chilled or frozen. -of fowls of species Gallus Domsticus: -Of fowls of the species Gallus Domsticus:		
	0207.1100	-Not cut in pieces, fresh or chilled	kg	Tshs.1000 per kg
	0207.1200	--Not Cuts in pieces Frozen	kg	Tshs. 1000 per kg
	0207.1300	-Cuts and offal, fresh or chilled	kg	Tshs. 1000 per kg
	0207.1400	-Cuts and offal,	kg	Tshs. 1000 per kg
03.03.	0207.1400	Fish, frozen, excluding fish fillets and other fish meat of heading 03.04 –	kg	Tshs. 1000 per kg
		Salmonidae, excluding edible fish offal of subheadings 0303.91 to 0303.99:		
03.04.		Fish fillets and other fish meat (whether or not minced), fresh chilled or frozen.	kg	Tshs. 1000 per kg
03.05.		Fish, dried, salted or in brine, smoked fish, whether or not cooked before or during the smoking process.	kg	Tshs. 1000 per kg
17.04		Sugar confectionary (including white chocolate), not containing cocoa		
	1704.10.00	-chewing gum, whether or not sugar-coated	kg	Tshs. 1000 per kg
	1704.90.00	-Other	kg	Tshs. 1000 per kg
18.06		Chocolate and other food preparation containing cocoa		
	1806.31.00	-filled, chocolate in divided bars etc filled with cocoa and sugar preparation.	kg	Tshs. 1000 per kg
	1806.32.00	-not filled	kg	Tshs. 1000 per kg
	1806.90.00	-Other	kg	Tshs. 1000 per kg

19.05		Bread, pastry, cakes, biscuits, and other bakers' ware, whether or not containing cocoa; communion wafers, empty cachets of a kind suitable for pharmaceutical use, sealing wafers, rice papers and similar products.		
	1905.31.00	-sweet biscuits	kg	Tshs. 1000 per kg
20.09		Imported fruit juices (including grape must) and vegetable juices, unfermented and not containing added spirit, whether or not containing added sugar or other sweetening matter.	Ltr	Tshs. 210.00 per litre
22.02		Water, including mineral water sand aerated waters, containing added sugar or other sweetening matter of flavored, and other non-alcoholic beverages, not including fruit or vegetable juices of heading No. 20.09	ltr	Tshs. 210.00 per litre
	2202.10.00	-Waters, including mineral waters and aerated waters, containing added sugar or other sweetening matter or flavored.	Ltr	Tshs 61.00 per litre
	2202.90.00	---Other	ltr	Tshs. 58.00 per Litre
	2202.91.00	Nonalcoholic Beer	ltr	Tshs. 561.00 per Litre
22.03		Beer made from malt		
	2203.00.10	---Stout and porter	ltr	Tshs. 765.00 per Litre
	2203.00.90	---other		Tshs. 765.00 per Litre
22.04		Wine of fresh grapes, including fortified wines; grape must other than that of heading No. 20.09		
	2204.10.10	-Sparkling wine	ltr	Tshs 6,000 per litre
	2204.10.10	---With the grapes content exceeding 75%	ltr	Tshs. 2,349 per litre
HEADING	HS CODE	DESCRIPTION	UNIT	RATE
	2204.10.90	---other	ltr	Tshs. 2,236.00 per litre

	--Other wine; grape must with fermentation prevented or arrested by the addition of alcohol		
2204.21.00	--In containers holding 21 or less	ltr	Tshs. 6,000 per litre.
2204.21.00	---With the grapes content exceeding 75%	ltr	Tshs. 2,349.00 per litre
2204.21.00	---Other	ltr	Tshs. 2,349.00 per litre
2204.22.00	--In containers holding more than 21 but more than 101	ltr	Tshs. 6,000 per litre.
2204.29.00	---Other	ltr	Tshs. 6,000 per litre
2204.30.00	--With the grapes content exceeding 75%	ltr	Tshs. 2,349.00 per litre
2204.30.90	---Other		Tshs. 2,349.00 per litre
2204.30.00	-Other grapes must Vermouth and other wine of fresh grapes flavored with plants or aromatics substances.	ltr	Tshs. 6,000 per litre.
22.05	Vermouth and other wine of fresh grapes flavored with plants or aromatics substances.		
2205.10.00	--In containers holding 21 or less		Tshs. 6,000 per litre.
2205.10.00	---With the grapes content exceeding 75%	ltr	Tshs. 2,349.00 per litre
2205.10.90	---Other	ltr	Tshs. 2,349.00 per litre
	- ot he r	ltr	Tshs. 4,386.06 per litre.
2205.90.00	- ot he r	ltr	Tshs. 6,000 per litre
2205.90.10	---With the grapes content exceeding 75%	ltr	Tshs. 6,000 per litre
2205.90.90	---Other	ltr	Tshs. 6,000 per litre

22.06

Other fermented beverages (for example, cider, Perry, mead) mixtures of fermented beverages and mixtures of fermented beverages, not elsewhere specified or included.

HEADING	HS CODE	DESCRIPTION	UNIT	RATE
	2206.00.10	---- cider	ltr	Tshs. 6,000 per litre
	2206.00.20	Beer made from 100% local unmalted cereals	ltr	Tshs.429.00 per litre
	2206.00.90	---Other	ltr	Tshs. 6,000 per litre
	2206.00.90	--- Other	ltr	Tshs. 6,000 per litre
22.08		Under natured ethyl alcohol of an alcoholic strength by volume of less than 80% vol; spirits, liqueurs and other spirituous beverages		
	2208.20.00	Spirits obtained by distilling grape wine or grape marc	ltr	Tshs. 6,000 per litre
	2208.30.00	-Whiskies	ltr	Tshs. 6,000 per litre
	2208.40.00	-Rum and other spirits obtained by distilling fermented sugar-cane products	ltr	Tshs. 6,000 per litre
	2208.50.00	-Gin and Geneva	ltr	Tshs. 6,000 per litre
	2208.60.00	-Vodka	ltr	Tshs. 6,000 per litre
	2208.70.00	-liquors and cordials		Tshs. 6,000 per litre
		--Other		Tshs3,481.00 per litre
	2208.90.10	Distilled Spirits (e.g. Konyagi , Uganda waragi)	ltr	Tshs. 6,000 per litre
	2208.90.00	-- Other		
24.02		Cigars, cheroots, cigarillos and cigarettes, of tobacco or of tobacco substitutes		
		-Cigarette containing tobacco		
		Cigar, cheroots cigarette containing tobacco.	Kgs	30%
		---Without filter tip and containing domestic tobacco content exceeding 75%.	Mil	Tshs.12,447.00 per mil
	2402.2090	---With filter tip and the domestic tobacco content exceeding 75%	mil	Tshs.29,425.00 per mil
24.03		--- Other	mil	Tshs.53.235.00 per

		--- Other	mil	mil Tshs.53,235.00 per mil
	2403.19.00	Other manufactured tobacco and manufactured tobacco substitutes; “homogenized” or “reconstituted” tobacco: tobacco extracts and essences. --Smoking tobacco, whether or not containing tobacco substitutes in any proportion		
	2403.10.10	---Cut rag/filler	kg	Tshs.26,888.00perkg
	2403.11.00	--smoking tobacco, whether or not containing tobacco substitute in any production.		
		Water pipe tobacco specified in sub heading note one to this chapter.	Kg	Tshs. 28,232.40
	2403.19.00	---Other	kg	30%
	2403.91.00	---Other ---homogenized or reconstituted tobacco.	Kg	30%
	2403.99.00	---Other	kg	30%
27.10		Petroleum oil and oils obtained from bituminous minerals, other than crude, preparation not elsewhere specified or included, containing by weight 70% or more of petroleum oils or of oils obtained from bituminous minerals, these oils being the basic constituents of the preparations; waste oils		
HEADING	HS CODE	DESCRIPTION	UNIT	RATE
	2710.12.10	Light oils and preparations ---Motor spirit(gasoline)regular	ltr	Tshs.379.00perLtr
	2710.12.20	---Motor spirit(gasoline)premium ---Other	ltr	Tshs.379.00perLtr
		-Medium oils and preparation		
		- Preparations		
	2710.19.21	----Kerosene type Jet Fuel	ltr	Nil
	2710.19.22	----illuminating kerosene	ltr	122.00 per ltr

	2710.19.29	--- other medium oils and preparations	ltr	871.45 per ltr
	2710.19.31	Gas oil and diesel oil Gas oil(automotive, light, amber for high speed engines)	ltr	Tshs. 255.00 per ltr
	2710.19.32	----Diesel oil (industrial, heavy black for low speed marine and stationary engines)	Ltr	Tshs. 201.00 per ltr
	2710.19.41	Residual oil ----Residual fuels oils(marine, furnaces and similar fuel oils)of180 centistokes.	Ltr	Tshs. 97.00 per ltr
	2710.19.42	----Residual fuels oils (marine, furnace sand similar fuel oils)of180 centistokes	ltr	Tshs. 97.00 per ltr
	2710.19.43	----Residual fuels oils(marine, furnace sand similar fuel oils)of280 centistokes.	Ltr	Tshs. 97.00 per ltr
	2710.19.49	----Other residual fuel oils	ltr	Tshs. 97.00 per ltr
	2710.19.51	-Other ----Lubricating oils	ltr	Tshs. 500 per m3
	2710.19.52	----Lubricating greases	ltr	Tshs.0.75 per kg
HEADING	HS CODE	DESCRIPTION	UNIT	RATE
27.11		-Petroleum gas sand other gaseous hydrocarbons		
	2711.11.00	--Natural gas	kg	Tshs.114.00 per kg.
	2711.12.00	--Propane	kg	Tshs.114.00 per kg.
	2711.14.00	--Ethylene, propylene, butylenesbutadiene.	Kg	Tshs.114.00 per kg.
	2711.19.00	--Other	kg	Tshs.114.00 per kg
39.23		Article for the conveyance or packaging of goods, of plastics; stoppers, lids, cap sand closures, of plastics. Sack sandbags(including cones)		
	3923.21.00	-of polymers of ethylene	kg	120%
	3923.21.10	---Shopping bags of other plastics	kg	120%
	3923.21.10	---Shopping bags	kg	120%
84.43	8543.40.10	Electronic Cigarettes	u	120%
	8543.40.90	--- Similar personal electric vaporizing devices	u	120%
85.23		Disc and tape, solid state nonvolatile storage devices, "smart card" and other media for recording of sound or other phenomena, whether or not recorded, including matrices and master for production of		

		disc		
		--Magnetic media		
		--unrecorded		
	8523.29.90	--recorded video and audio tape	u	Tshs.50.00 per unit
	8523.40.90	Optical media Recorded DVD, VCD,CD		Tshs.50.00 per unit
HEADING	HS CODE	DESCRIPTION	UNIT	RATE
87.02		Motor vehicles for the transport of tenor more persons, including the driver. -With compression ignition in terminal combustion piston engine (diesel or semi diesel)		
	8702.10.20	--of cubic capacity of 2000 or more than seating capacity not exceeding ten persons -other	u	10%
87.03		Motor car and other motor vehicles principally designed for the transport of persons other than those of heading No.87.02, including station wagons and racing cars. --other vehicles with sparkling ignition combustion reciprocating piston engine.		
	8703.22.90	---other	u	5%
	8703.23.01	--of a cylinder capacity exceeding 1,500cc but not exceeding 3,000cc of a cylinder capacity exceeding 1,500cc but not exceeding 2,000cc	u	5%
	8703.23.99	----other ---of a cylinder capacity exceeding 3000cc	u	10%
	8703.24.90	---other other vehicles, with compression ignition internal combustion piston engine (diesel or semi diesel)	u	10%
HEADING	HS CODE	DESCRIPTION	UNIT	RATE
		--of a cylinder capacity not		

	8703.31.91	exceeding 1,500cc ---of a cylinder note	u	Nil
	8703.31.99	exceeding 1,000cc ---other	u	5%
		--Of a cylinder capacity exceeding 1,500cc but not exceeding 2,500cc		
	8703.32.91	----of a cylinder capacity exceeding 1,500cc but not exceeding 2,000cc	u	5%
	8703.32.99	----Other	u	10%
		---of a cylinder capacity exceeding 2,500cc	u	5%
	8703.33.90	---Other	u	10%
88.02		Other aircraft for example helicopter, aero planes, space aircraft (including satellites and suborbital and spacecraft launch vehicles for private use excluding commercial aircraft. Helicopter		
	8802.11.00	--of an un laden weight not exceeding 2000kg.	u	20%
	8802.12.00	of an un laden weight exceeding 2000kg.	u	20%
	8802.20.00	--aero planes and other aircrafts of an un laden weight not exceeding 2000kg.	u	20%
	8802.30.00	--aero planes and other aircrafts of an un laden weight exceeding 15,000kg	u	20%
	8804.40.00	aero planes and other aircrafts of an un laden weight exceeding 2,000kg but not 15,000kg.	u	20%
HEADING	HS CODE	DESCRIPTION	UNIT	RATE
94.01		Imported seats whether or not convertible into beds, and part thereof		
	9401.30.00	--swivel seats with variable height adjustment.	u	20%
	9401.40.00	--Seats other than garden seats or camping equipment, convertible into beds. ---Seats of cane, osier, bamboo or similar materials	u	20%
	9401.51.00	---of bamboo rattan	u	20%
	9401.59.00	---other	u	20%

94.03	9401.61.00	---Other seats with wooden frames: ---upholstered	u	20%
	9401.69.00	---other	u	20%
		---Other seats with metal frames		
	9401.71.00	-----upholstered	u	20%
	9401.79.00	--- other	u	20%
	9401.80.00	--- other seats	u	20%
	9401.90.00	Parts Other imported furniture and part thereof	kg	20%
	9403.10.00	- Metal furniture of kind used in offices	kg	20%
	9403.20.00	-Other metal furniture	u	20%
	9403.30.00	-Wooden furniture of kind used in the offices		20%
	9403.40.00	-Wooden furniture of kind used in the kitchen	u	20%
HEADING	HS CODE	DESCRIPTION	UNIT	RATE
	9403.50.00	-Wooden furniture of kind used in the bedroom	u	20%
	9403.60.00	- Other wooden furniture	u	20%
	9403.70.00	- Furniture of plastics	kg	20%
		-Furniture of other materials, including cane, osier, bamboo or similar materials		
	9403.81.00	---of bamboo or rattan	kg	20%
	9403.8900	--other	kg	20%
	9403.90.00	-parts	kg	20%
		--imported non-utility vehicle of	u	20%

		ten years or more from the year of its manufacture.		
		imported used spare parts motor vehicle, bicycles, motor cycles and used domestic appliances including refrigerators, washing machines, electric cookers, microwave ovens, vacuum cleaners, electric fences, air conditioners, electric radiators, and all other related products, electric appliances including televisions, cartridges, printers, photocopiers, mobile phones and all other related products.	u	20%
96.14	9614.00.00	Sheesha	kg	120%
	Miscellaneous items	(a) Imported motor vehicle aged more than five years but not more than ten years	kg	15%
		(b) Tableware, kitchenware, other household articles and hygienic or toilet articles of plastics (specifically disposal items)	kg	5%

SECOND SCHEDULE

EXCISABLE SERVICES Made under section 4(1)

S/No.	DESCRIPTION OF SERVICE	RATE OF DUTY
1.	Electronic communication services	17% of the dutiable value:
2.	Pay to view television services provided by licensed	5% of the dutiable value.

- cable television network or cable operator other than the Government or the local Government Authority Operator.
- | | | |
|----|--|--|
| 3. | Services provided by financial institutions. | 10% on charges or fees payable by a person receiving the services. |
| 4. | Money transfer and payment services provided by telecommunication service provide. | 10% on charges or fees payable by a person receiving services. |
| 5. | Other imported services. | 12% of the dutiable value |

THIRD SCHEDULE

PERSONS AND ORGANISATIONS EXEMPTED FROM PAYMENT OF DUTY

[Made under section 15]

S/No.	PERSONS AND ORGANISATIONS EXEMPTED FROM PAYMENT OF DUTY
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- | | |
|----|---|
| 1. | Goods or services imported or purchased by Diplomatic or Consular Mission |
| 2. | Goods or services imported or purchased by foreign Government, International Organizations or Aid Agencies. |
| 3. | Excisable goods including motor vehicle imported by returning residents. |

PASSED by the House of Representative of Zanzibar on 21st June, 2017

(RAYA ISSA MSELLEM)

Clerk of the House of Representatives of Zanzibar.